

भाग-13

उच्च न्यायालय का निर्णय

विषय :- सूचना का अधिकार अधिनियम, 2005 के अंतर्गत सूचना के संबंध में डॉ. सेल्सा पिंटो बनाम गोवा राज्य सूचना आयोग के मामले में 2007 की रिट याचिका सं. 419 में गोवा स्थित बम्बई उच्च न्यायालय का दिनांक 03.04.2008 का निर्णय।

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उपरोक्त विषयान्तर्गत भारत सरकार, कार्मिक, लोक शिकायत तथा पेंशन मंत्रालय (कार्मिक और प्रशिक्षण विभाग) नई दिल्ली से प्राप्त पत्र क्रमांक 1/7/2009-आई.आर. दिनांक 01 जून 2009 की छायाप्रति आवश्यक कार्यवाही हेतु संलग्न प्रेषित है।

संलग्न :- उपरोक्तानुसार

(छ0ग0 शा0, सा0 प्र0 वि0, क्रमांक 918/जी-756/2009/1-सूअप्र रायपुर, दिनांक 30 जून, 2009)

OFFICE MEMORANDUM

Subject : Decision dated 3.4.2008 of the Hight Court of Bombay at Goa in Writ Petition No. 419 of 2007 in the case of Dr. Celsa Pinto Vs. Goa State Information Commission regarding information under the Right to information Act, 2005.

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The undersigned is directed to say that the Hight Court of Bombay at Goa in the above referred case has held on 3.4.2008 that the term "information" as defined in the Right to Information Act does not include answers to the questions like 'Why'. The relevant part of the judgement is reproduced below :

"The definition of information cannot include within its fold answers to the question "why" which would be same thing as asking the reason for a justification for a particular thing. The Public information authorities cannot expect to communicate to the citizen the reason why a certain thing was done or not done in the sense of a justification because the citizen makes a requisition about information. Justifications are matter whithin the domain of adjudicating authorites and cannot properly be classified as information. "

2. This may be brought to the notice of all concerned.

(No. 1/7/2009-IR Government of India, North Block, New Delhi-11001 Dated : The 1st June 2009)